IN THE NATIONAL COMPANY LAW TRIBUNAL; NEW DELHI
SPECIAL BENCH (COURT – II)

Item No. 307
CA-(CAA)-67/ND/2023
CP(CAA)-38/ND/2024

IN THE MATTER OF:
Techpark Maintenance Services Pvt. Ltd. and Ors. ... **Applicant/Petitioner**

Under Section: 230-232

Order delivered on 22.05.2024

CORAM:
SH. ASHOK KUMAR BHARDWAJ, HON'BLE MEMBER (J)
SH. UMESH KUMAR SHUKLA HON'BLE MEMBER (T)

PRESENT:
For the Applicant : CS Ashok Kumar Verma, CS Jitender Arora, Adv. Amit Verma
For the Respondent :

Hearing Through: VC and Physical (Hybrid) Mode

ORDER

CP(CAA)-38/ND/2024: The present petition has been preferred for sanction of Scheme of arrangement of **Techpark Maintenance Services Private Limited** (Demerged Company), **Halwasiya Estates Limited** (Transferor Company No. 1), **Welldone Technology Parks Development Private Limited** (Transferor Company No. 2) with **G. R. Maintenance And Services Limited** (Transferee Company). Under Section 230-232 of Companies Act, 2013.

The present petition is a second motion petition under Section 230-232 of the Companies Act, 2013. The Scheme of arrangement is espoused under Section 230 to 232 and other applicable provisions of the Companies Act, 2013 for demerger qua the aforementioned companies to achieve the objects mentioned in the scheme of arrangement.

Heard. Issue notice to the concerned RD, RoC, Official Liquidator, Income-tax authorities, Real Estate Regulatory Authority(ies) and other sectoral regulators or authorities which are likely to be affected by the compromise or arrangement.

The representations, if any, by the notice shall be made within a period of thirty days from the date of receipt of the notice, failing which, it shall be presumed that they have no representations to make on the proposals.

Ld. Counsel for the Petitioner undertakes to serve notice upon the authorities/offices referred to hereinabove by all modes viz. registered post, speed post and E-mail. Affidavit of service be filed within one week. The petitioner shall also make all the documents referred to in Section 230(3) of the Companies Act, 2013 viz., a statement disclosing the details of the compromise, arrangement, a copy of the valuation report, if any, and their effect on creditors, key managerial personnel, promoters and non-promoter members, and the debenture-holders and the effect of the compromise or arrangement on any material interests of the directors of the company or the debenture trustees, if any, to the authorities referred to hereinabove. The documents as also a copy of the notice to be served in terms of the present order upon the authorities (ibid) shall also be placed on the website of the company, if any, and shall also be published in two nationalised newspapers having wide circulation in the locality/state where the registered offices of the petitioners are located namely, Business Standard (English, Delhi Edition); and Navbharat Times (Hindi, Delhi Edition).

List on 30.07.2024.

Sd/-

(UMESH KUMAR SHUKLA)
MEMBER (T)

Sd/-

(ASHOK KUMAR BHARDWAJ)
MEMBER (J)